

Court No. - 39

Case :- WRIT - C No. - 26065 of 2020

Petitioner :- Om Prakash Gautam

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Sri Rajesh Yadav, learned counsel appearing on behalf of respondent nos. 1 and 2 seeks further time to obtain instructions to which learned counsel for the petitioner has serious objections.

As a last opportunity, the case is adjourned for the day on the request of learned counsel for the respondents.

Let the case be listed in additional cause list on 25.01.2021.

Order Date :- 19.1.2021

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Heard learned counsel for the petitioner, Sri Rajesh Yadav, learned counsel for respondent nos. 1, 2 & 3 and learned Standing Counsel for respondent no. 4.

Instant writ petition has been filed with the following relief:

"A. Issue a writ, order, rule or direction in the nature certiorari quashing the impugned final assessment order passed by the respondent no. 2 in pursuant to the show cause notice dated 02.09.2019 issued by him to petitioner vide dated 02.09.2019 vide patrank [2346/Vi.Vi.kha/dibai/Vidyut Chori](#), so the justice be done, otherwise the petitioner shall suffer irreparable loss and injury.

B. Issue a writ, order, rule or direction in the nature certiorari quashing the impugned recovery proceedings pending with the respondent no. 5 pursuant to the assessment order made by the respondent no. 2 pursuant to his show cause notice dated 02.09.2019 vide Patrank [2346/Vi.Vi.kha/dibai/Vidyut Chori](#), so the justice be done, otherwise the petitioner shall suffer irreparable loss and injury.

C. Issue a writ, order, rule or direction in the nature of mandamus directing and commanding the respondents staying the realization of any amount from the petitioner pursuant to the assessment made by the respondent no. 2 against the petitioner pursuant to the show cause notice dated 02.07.2019 issued by respondent no. 2 vide patrank [2346/Vi.Vi.kha/dibai/Vidyut Chori](#), during the pendency and also please to stay the recovery proceeding pending against the petitioner with the respondent no. 5, so that justice be done otherwise the petitioner shall suffer irreparable loss and injury.

D.

E."

Learned counsel for the petitioner submits that final assessment order was never served upon the petitioner and merely on the basis of the provisional assessment, the recovery proceeding has been initiated against him. The petitioner has made a detailed representation prior to issuance of the provisional assessment and checking of his premises yet the recovery citation has been issued against the petitioner, which is bad in law.

Learned counsel for the Power Corporation submits that it was a case of theft of electricity and the first information report was registered against the petitioner under Section 135 of the Electricity Act, 2003 after checking his premises on 9.7.2019. It is further submitted that provisional assessment was made on 2.9.2019 and thereafter, the final assessment was also made on 26.2.2020, which were well within the knowledge of the petitioner. Learned counsel for the Power Corporation also submits that in case the petitioner has any grievance with regard to disconnection of electricity or correction of electricity bill, he may approach before the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005.

Considering the submissions advanced by learned counsel for the parties, the writ petition is disposed of with the liberty to the petitioner to move a representation raising his grievances before the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005 within a period of three weeks from today. In case any such representation is moved by the petitioner, the same shall be considered and decided by the respondent no. 2 strictly in accordance with law by means of a reasoned and speaking order within a period of one month from the date of filing of the representation, after affording due opportunity of hearing to him. During the pendency of the proceeding before the authority, no coercive steps shall be taken against the petitioner.

In case the petitioner fails to make any representation within the time allowed, the respondent authority will be at liberty to recover the amount in accordance with law.

Order Date :- 25.1.2021

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